U.S. Department
of Transportation
**Federal Aviation
Administration**

Office of the Chief Counsel

800 Independence Ave., S.W.
Washington, D.C. 20591

JUL 28 2015

Mr. Richard L. Newman
[redacted]

RE: Title 14 Code of Federal Regulations Section 61.56(c), Flight Review

Dear Mr. Newman:

This is in response to your request for a legal interpretation dated June 8, 2015. You have requested an interpretation of the requirements for a flight review under § 61.56, in particular how it applies when a certificated pilot is training for an additional category or class rating.

In answer to your first question, whether two authorized instructors can administer the flight review, one instructor giving the ground training and the second instructor giving the flight training portion of the flight review, § 61.56 does not say that the flight review must be given by a single instructor. Further, § 61.215 states, "(a) a person who holds a basic ground instructor rating is authorized to provide – (2) ground training required for a sport pilot, recreational pilot, and private pilot flight review." Also, § 61.215(b)(2) provides that a person who holds an advanced ground instructor rating is authorized to provide, "(2) the ground training required for any flight review except for the training required for an instrument rating." It is permissible for a flight review to be given by two instructors, but each instructor must provide a logbook endorsement certifying that the person has satisfactorily completed the portion of the review that the instructor gave to the person.

Your second question concerns a certificated pilot in powered aircraft who does not have a current flight review. The pilot is training to add a glider category rating to his pilot certificate. Per § 61.56(c), the pilot in question must have a current flight review to perform solo flights in a glider during training. Section 61.56(g) provides an exception for student pilots, provided the student pilot is training for a certificate and has a current solo flight endorsement as required under § 61.87. A pilot who holds a higher level pilot certificate must comply with the flight review requirements in § 61.56(c) before acting as pilot in command of any aircraft. The question of whether a certificated pilot needs a current flight review to perform solo flights in another category or class of aircraft is discussed in the Letter of Interpretation to Daniel Beard, January 9, 2015, a copy of which is enclosed with this response.

I hope this response has been helpful to you. If you have additional questions or need further assistance, please contact my staff at (202) 267-3073. This response was prepared by Neal O'Hara, an attorney in the Regulations Division of the Office of the Chief Counsel, and was coordinated with the General Aviation and Commercial Division of the Flight Standards Service.

Sincerely,

Lorelei Peter
Acting Assistant Chief Counsel for Regulations

Enclosure